

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) “[T]he courts of this state have considered noncompliance with the party substitution requirements of section 474 as a procedural defect that could be cured and have been lenient in permitting rectification of the defect.” (*Woo, supra*, 75 Cal.App.4th at 177.)

Defendants further contend that “[t]he facts underlying the incident including the identity of the driver and vehicle owner were necessarily known or readily ascertainable at the time of the original complaint.” (Support Memo at 4:22-24.) “A further and nonprocedural requirement for application of the section 474 relation-back doctrine is that [plaintiff] must have been genuinely ignorant of [newly named defendant’s] identity at the time she filed her original complaint.” (*Woo, supra*, 75 Cal.App.4th at 177.)

The Court finds nothing in the allegations of either the Complaint or the Amended Complaint that clearly disclose either: (1) that Plaintiff knew the identity of the Defendants, or any of them, as of the filing of the original Complaint; or (2) circumstances from which such knowledge was readily ascertainable.

Based on the foregoing, the Court sustains the demurrer with leave to amend.

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Robert Breed v. Adventist Health St. Helena et al

26CV000093

[1] DEFENDANT’S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION
SUBPOENAS

TENTATIVE RULING: The motion is GRANTED IN PART. Each of the Employers (defined below) is ordered to produce to Defendant Adventist Health St. Helena (the Hospital), within 21 calendar days of Notice of Entry of the instant ruling, the following documents:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed’s employment.

The Hospital’s request for an award of monetary sanctions is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

The Hospital moves, pursuant to Code of Civil Procedure §1985.3 and 1985.6, for an Order compelling third parties Emerald Health Services (Emerald), Sutter Davis Hospital (Sutter), and the Center for Specialized Surgery (Specialized, and collectively Employers) to comply with respective deposition subpoena for production of Plaintiff Robert Breed's employment records served by Defendant on each.

Through the Opposition Mr. Breed argues that he has not waived objections to the subpoenas by failing to timely bring a motion to quash. (See, *e.g.* Opposition at 2:17-19.) First, the Court does not find any assertion of such waiver in the Hospital's moving papers. The Hospital correctly noted that (as of the filing of the instant motion) Mr. Breed had not filed such motion(s) – the statutory means for timely asserting his right to privacy. But the Court does not read this as an argument that Mr. Breed waived his objections. Second, even assuming, *arguendo*, that such argument was raised, the Court finds that, while a failure to timely file a motion to quash exposes a party to the risk that the third party will respond to the subpoena, it does not, by itself, constitute a waiver of objections to the subpoena. (See *Slagle v. Super. Ct.* (1989) 211 Cal.App.3d 1309, 1312 [“Nothing in the procedure . . . suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production”].)

Moreover, on June 1, 2026, Mr. Breed filed four Motions to Quash, three of which address, respectively, the Subpoenas at issue here. The three memoranda filed in support of the respective motion to quash appear to be identical with one another and advance the same arguments advanced through his Opposition to the instant motion.

B. GOOD CAUSE FOR PRODUCTION

Pursuant to California's Civil Discovery Act, A civil litigant's right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; see *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].) “A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 540.) “California's pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side's evidence, with all doubts about discoverability resolved in favor of disclosure.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117 (*Glenfed*).)

“Although the scope of civil discovery is broad, it is not limitless.” (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 (*Calcor*) “In the . . . context of a request to produce documents, a party who seeks to compel production must show ‘good cause’ for the

request (§ 2031, subd. (l)) – but where . . . there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance.” (*Glenfed, supra*, 53 Cal.App.4th 1117.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed, supra*, 53 Cal.App.4th at 1117.) A finding of relevance may be supported simply by the claims or defenses asserted through the pleadings. ((*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th 92, 98.) Where such showing cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce *evidence* from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (*Calcor, supra*, at p. 223, emphasis in original.)

Each of the three subject subpoenas seeks the same nine categories of documents, and each is, through a preamble to the respective Amended Attachment 3, limited to the timeframe March 1, 2023, to present. (See Declaration of Nicole Baarts at Exhs. E, F, and G (Baarts Decl.).) The Hospital argues that these categories are relevant to the following issues – “whether Plaintiff improperly maintained dual employment with Defendant and another employer while Plaintiff was on a medical leave of absence from Defendant; whether Plaintiff was unable to work while on leave from Defendant; whether Plaintiff’s functional limitations existed during prior employment; and whether Plaintiff’s resume and interrogatory responses accurately reflect his work history.” (Support Memorandum at 8:1-6.) With one exception, discussed below, the Court agrees.

C. PLAINTIFF’S CONSTITUTIONAL RIGHT TO PRIVACY

Mr. Breed argues that the documents sought by the subject subpoenas should be shielded from discovery based on his constitutional right to privacy. (See, *e.g.*, Opposition at 3:13, *et seq.*) Mr. Breed unquestionably enjoys a right to privacy which extends to his personal employment records. (*Board of Trustees v. Super. Ct. of Santa Clara Co.* (1981) 119 Cal.App.3d 516, 526 [held “personnel, tenure, and promotion files” were subject to the Constitutional right of privacy], overruled on other grounds by *Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552, discussed below.)

Discovery orders implicating privacy rights are evaluated under the framework established in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 (*Hill*), reiterated in *Pioneer Electronics (USA), Inc. v. Super. Ct.* (2007) 40 Cal.4th 360 (*Pioneer*), and further developed in *Williams*.

“In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]” (*Williams, supra*, 3 Cal.5th at 552.)

Mr. Breed contends that “[w]hen a discovery request implicates the constitutional right to privacy, the party seeking the information . . . faces a heightened burden: they must demonstrate a compelling public interest, and they must show that the information sought is directly relevant and narrowly tailored to the specific dispute.” (Opposition at 3:15-19.) Not so. “Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires. What suffices to justify an invasion will . . . vary according to the context. [Citation.]” (*Williams, supra*, 3 Cal.5th at 557.)

“First, the privacy claimant must possess a legally protected privacy interest, of which there are two general types, autonomy privacy (the interest in making intimate personal decisions or conducting personal activities without observation, intrusion or interference) and informational privacy. Informational privacy—the form at issue in this case – is the interest ‘in precluding the dissemination or misuse of sensitive and confidential information.’ [Citation.] Information in this class is deemed private ‘when well-established social norms recognize the need to maximize individual control over its dissemination and use to prevent unjustified embarrassment or indignity.’ [Citation.] Second, the privacy claimant must have a reasonable expectation of privacy under the specific circumstances, including ‘customs, practices, and physical settings surrounding particular activities [which] may create or inhibit reasonable expectations of privacy.’ [Citation.] Third, actionable invasions of privacy ‘must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right.’ [Citation.] Finally, if the three criteria for invasion of a privacy interest exist – a legally protected privacy interest, a reasonable expectation of privacy under the particular circumstances, and a serious invasion of the interest – then the privacy interest ‘must be measured against other competing or countervailing interests in a “balancing test.”’ [Citations.] *Pioneer* explained: “Conduct alleged to be an invasion of privacy is to be evaluated based on the extent to which it furthers legitimate and important competing interests.’ [Citation.] Protective measures, safeguards and other alternatives may minimize the privacy intrusion. ‘For example, if intrusion is limited and confidential information is carefully shielded from disclosure except to those who have a legitimate need to know, privacy concerns are assuaged.’ [Citation.] [Citation.]” (*Alch v. Super. Ct.* (2008) 165 Cal. App. 4th 1412, 1423-1424.)

“‘Plaintiff is not compelled, as a condition to entering the courtroom, to discard entirely [his] mantle of privacy.’ [Citation.] Although the filing of a lawsuit may be deemed a waiver of privacy as to matters embraced by the action, we have emphasized that the scope of this waiver ‘must be narrowly rather than expansively construed.’ [Citations.] Matters that would otherwise be protected by the constitutional privacy right are discoverable only if ‘directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.’ [Citation.] The party seeking access to constitutionally protected information has the burden of proving direct relevance. [Citation.]” (*Heller v. NorCal Mutual Ins. Co.* (1994) 8 Cal.4th 30, 60 (*Heller*).)

As noted above, the Court finds that Mr. Breed has a privacy interest in maintaining the confidentiality of his employment records. The Court further finds that Mr. Breed has a reasonable expectation that his employers will maintain the confidentiality of such information.

Finally, the Court finds that the discovery of such information in the present lawsuit constitutes a serious invasion of Mr. Breed's privacy interest in the information.

Mr. Breed contends that the document requests at issue are overbroad. (See, *e.g.*, Opposition at 3:26-4:6 ["While Defendant may be entitled to limited discovery regarding Plaintiff's mitigation of damages or physical capacity during his leave period, they are absolutely not entitled to wholesale access to his permanent personnel files, performance evaluations, and disciplinary histories across multiple unrelated employers"].)

The Hospital notes, however, that "Plaintiff has placed his mental health, including the onset and severity, his need for leave, and his earnings history squarely at issue" in the litigation. (See Reply at 4:13-14.) As noted above, "the filing of a lawsuit may be deemed a waiver of privacy as to matters embraced by the action . . ." (*Heller, supra*, 8 Cal.4th at 60.)

In the Court's view, both parties, through their moving and opposition papers, oversimplify the nature of the Mr. Breed's Amended Complaint. Mr. Breed represents the action as one seeking redress for sexual harassment. This ignores his allegations of "severe emotional and mental distress" and disability. (See, *e.g.*, Amended Complaint at ¶¶ 34, 38-39, 41, 42, 47, 49, 54, 58, 67, 70-71, 75-76, and 90.) The Hospital, on the other hand, ignores the allegations that these conditions arose specifically as a result of the alleged sexual harassment.

The Hospital further asserts that "Defendant's investigation to date suggests that Plaintiff was working at other health care entities while he was on leave from Defendant" and that Mr. Breed has misrepresented, to Hospital and to the public (through his LinkedIn profile) the dates of his employment with the Employers. (See Reply at 4:19-23; see also Baarts Decl. at ¶ 2 and Exh. C, and Declaration of Michael Fanselau at ¶ 2 and Exh. A.) Mr. Breed acknowledges that the subject LinkedIn profile is his and contends that it is simply outdated. (See Declaration of Robert Breed at ¶¶ 5-7, and Exh. A.)

Against the foregoing, the Court balances the extent to which production of the sought-after documents furthers legitimate and important competing interests.

D. LEGAL ANALYSIS

1. Document Categories

The Court finds that each of Category Nos. 1 ["documents that pertain to [Mr. Breed's] application for employment"], 2 ["documents related to [Mr. Breed's] disability or requests for accommodations"], 7 ["documents that pertain to any workers' compensation claims filed by [Mr. Breed]"], 8 ["documents that pertain to [Mr. Breed's] time records (including time records transmitted to a separate entity that employed [Mr. Breed])"], and 9 ["documents that pertain to [Mr. Breed's] resignation or termination from employment."] are, subject to the temporal limitation discussed below, relevant to Mr. Breed's allegations that he suffered severe emotional and mental distress and was mentally disabled and unable to work as a result of the alleged harassment. They are also relevant to Mr. Breed's representations as to his work history.

The Court further finds that each of Category Nos. 3 [“documents that pertain to any employee benefits offered to and/or received by the Subject”], and 4 [“documents that pertain to any remuneration offered to and/or received by the Subject for any reason”] are, subject to the temporal limitation discussed below, relevant to the issue of Mr. Breed’s ability to mitigate, and actual mitigation of, his alleged damages.

Mr. Breed alleges that he “was employed by Defendants . . . from on or about April 19, 2024, and is still currently employed with Defendant [sic].” (Amended Complaint at ¶ 3.) He further alleges that the harassment began in or around November 2024.

In this context, the Court finds, on the current record, that the Hospital’s interest in discovery of the foregoing categories (Nos. 1-4 and 7-9) outweighs Mr. Breed’s right to privacy in and to his employment records as to any such documents that were either (1) created or (2) delivered (to an Employer or to Mr. Breed according to the nature of the category) on or after April 19, 2024. Each Employer is, therefore, ordered to produce all such documents to the Hospital in response to the respective subpoena.

Through his Motions to Quash, Mr. Breed contends that “[a]ll of these positions completely pre-date Plaintiff’s employment with Defendant, which began on April 19, 2024.” (Motion to Quash Support Memo at 6:3-4.) The statement is not supported by evidence. To be clear, however, if no documents responsive to any of Category Nos. 1-4 and/or 7-9 were created or transmitted to the respective Employer on or after April 19, 2024 (with partial exceptions for Category Nos. 1 and 9, discussed below) then no documents need be produced in response to the subpoenas.

The Hospital fails to persuade the Court that good cause exists for the production of documents identified in either Category No. 5 [“documents that pertain to any paid or unpaid suspension of the Subject that resulted in preventing the Subject from receiving a pay increase”] or No. 6 [“documents that pertain to any discipline, counseling, or coaching provided to the Subject that resulted in preventing the Subject from receiving a pay increase”].

As to *pre*-April 19, 2024, documents responsive to Category No. 1 [“documents that pertain to [Mr. Breed’s] application for employment”] and No. 9 [“documents that pertain to [Mr. Breed’s] resignation or termination from employment”], the Court finds that the Hospital’s interest in discovery of the inclusive dates of Mr. Breed’s employment, regardless of the timing thereof, is relevant to his credibility, *vis-à-vis* his LinkedIn posts and his representations to the Hospital regarding other employment.

Thus, the Employers shall also produce documents sufficient to identify the inclusive dates of Mr. Breed’s employment.

2. Sanctions

Through its Supporting Memorandum, and relying on Code of Civil Procedure section 1987.2, subdivision (a), the Hospital urges the Court to issue monetary sanctions against Mr. Breed for his actions relating to the subject subpoenas.

With exceptions having no apparent relevance here, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

The Court finds no evidence that Mr. Breed opposed the motion in bad faith. Moreover, as noted above, the Court finds that the subject document requests are overbroad. For this reason, the Court finds that the opposition was made with substantial justification.

Based on the foregoing, the Hospital’s request for an award of monetary sanctions is DENIED.

[2] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM SUTTER DAVIS HOSPITAL

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff’s request for an order quashing the subject subpoena is DENIED. Plaintiff’s request for a protective order is GRANTED IN PART. Sutter Davis Hospital is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed’s employment.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Sutter Davis Hospital.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed’s Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in

support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[3] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER
AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM KAISER
PERMANENTE OAKLAND MEDICAL CENTER

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is GRANTED IN PART. Kaiser Permanente Oakland Medical Center is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Kaiser Permanente Oakland Medical Center.

The instant motion raises the same issues and arguments raised by Mr. Breed through his Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. While the instant subpoena was not at issue in that Motion to Compel, it involves identical categories of documents. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[4] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER
AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM CENTER FOR
SPECIALIZED SURGERY

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is

GRANTED IN PART. The Center for Specialized Surgery is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Center for Specialized Surgery.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed's Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[5] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM EMERALD HEALTH SERVICES, INC.

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is GRANTED IN PART. Emerald Health Services, Inc. is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Emerald Health Services, Inc.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed's Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

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James Keener et al v. DB Insurance Co., LTD

26CV000162

MOTION OF DEFENDANT DB INSURANCE CO., LTD. (U.S. BRANCH) TO DISMISS OR STAY THIS ACTION PENDING THE OUTCOME OF THE EARLIER FILED FEDERAL COURT CASE

TENTATIVE RULING: The Court finds that the interests of justice, judicial economy, and comity are best served by hearing and resolving the instant motion after resolution, by the U.S. District Court for the Northern District of California (District Court) of James Keener's pending Motion to Stay the Federal Action (Federal Motion). The Court, therefore, sets the matter for an OSC re: Federal Motion on August 20, 2026, at 8:30 a.m. in Dept. A. Should the District Court issue a ruling on the Federal Motion prior to the OSC hearing, Plaintiff is directed to file a copy thereof in this action in the form of a Request for Judicial Notice. The Court will not hear the instant motion on August 20, 2026, but may, on that date and as appropriate, set the matter for hearing and request additional briefing.

The Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.